



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 35843739

Date: JAN. 21, 2025

Appeal of California Service Center Decision

Form I-129, Petition for a Nonimmigrant Worker (H-1B)

The Petitioner seeks to temporarily employ the Beneficiary under the H-1B nonimmigrant classification for specialty occupations. *See* Immigration and Nationality Act (the Act) section 101(a)(15)(H)(i)(B), 8 U.S.C. § 1101(a)(15)(H)(i)(b). The H-1B program allows a U.S. employer to temporarily employ a qualified foreign worker in a position that requires both (a) the theoretical and practical application of a body of highly specialized knowledge and (b) the attainment of a bachelor's or higher degree in the specific specialty (or its equivalent) as a minimum prerequisite for entry into the position.

The Director of the California Service Center revoked the approval of the petition with a finding of fraud, concluding that the Petitioner violated statutory or regulatory requirements as proscribed by 8 C.F.R. § 214.2(h)(iii)(A)(4) because it did not rebut the evidence that showed that it worked with another entity to unfairly increase the chance of the Beneficiary's selection in the H-1B registration process. The matter is now before us on appeal pursuant to 8 C.F.R. § 103.3.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will withdraw the Director's decision and remand the matter for entry of a new decision consistent with the following analysis.

I. LAW

To ensure a fair and equitable allocation of the available H-1B visas in any given fiscal year, U.S. Citizenship and Immigration Services (USCIS) has instituted the registration requirement contained at 8 C.F.R. § 214.2(h)(8)(iii)(A)(i). A petitioner must register to file a petition on behalf of a non-citizen beneficiary electronically and a registration must be properly submitted pursuant to 8 C.F.R. § 103.2(a)(1) and the applicable form instructions to render a petitioner eligible to file an H-1B petition.

A petitioner submitting a registration is required to attest under penalty of perjury that they have not worked with or agreed to work with another registrant, petitioner, agent, or other individual or entity to

submit a registration to unfairly increase the chances of selection for the beneficiary in that specific registration. If USCIS finds that this attestation was not true and correct (for example, that a company worked with another entity to submit multiple registrations for the same beneficiary to unfairly increase the chances of selection for that beneficiary), USCIS will find that the registration was not properly submitted. This renders a petitioner ineligible to file a petition based on that registration pursuant to 8 C.F.R. § 214.2(h)(8)(iii)(A)(1).

Moreover, USCIS may revoke the approval of an H-1B petition pursuant to 8 C.F.R. § 214.2(h)(11)(iii), which states the following:

- (A) *Grounds for revocation.* The director shall send to the petitioner a notice of intent to revoke the petition in relevant part if he or she finds that:
 - (1) The beneficiary is no longer employed by the petitioner in the capacity specified in the petition . . .; or
 - (2) The statement of facts contained in the petition or the application for a temporary labor certification was not true and correct, inaccurate, fraudulent, or misrepresented a material fact; or
 - (3) The petitioner violated terms and conditions of the approved petition; or
 - (4) The petitioner violated requirements of section 101(a)(15)(H) of the Act or paragraph (h) of this section; or
 - (5) The approval of the petition violated paragraph (h) of this section or involved gross error.

The regulations require that USCIS provide notice consisting of a detailed statement of the grounds for revocation of the petition approval and provide an opportunity for the petitioner to respond to the notice of intent to revoke. 8 C.F.R. § 214.2(h)(11)(iii)(B).

II. ANALYSIS

The Petitioner filed the underlying petition on behalf of the Beneficiary seeking new employment and requesting consideration under the H-1B numerical limitation (H-1B cap). After initially approving the petition, the Director notified the Petitioner of USCIS' intent to revoke the approval of the petition, with a finding of fraud, through a notice of intent to revoke (NOIR). The Director concluded that the Petitioner's response to the NOIR did not sufficiently rebut the derogatory information and accordingly revoked the petition's approval with a finding of fraud. The Petitioner now appeals the Director's revocation of the petition's approval.

Upon de novo review, we conclude that the Director did not sufficiently notify the Petitioner of stated grounds to revoke the petition based upon the Petitioner's potential collusion with another entity to unfairly increase the chances of the Beneficiary's selection in the H-1B registration process and did not sufficiently articulate the grounds for the related finding of fraud. For that reason, we will

withdraw the Director's finding of fraud and remand the matter for entry of a new decision consistent with the analysis below.

The Director advised the Petitioner in the NOIR that USCIS intended to revoke the petition in accordance with 8 C.F.R. § 214.2(h)(11)(iii)(A)(4) because the Petitioner violated requirements of the statute or regulations when it worked with another entity to submit multiple H-1B registrations to unfairly increase the chances of selection for the Beneficiary, and that it falsely certified the attestation made in the submission of its H-1B registration.¹ Specifically, the Director asserted that the Petitioner is related to and worked with another company, [REDACTED], to file multiple registrations for the Beneficiary to unfairly increase the chances of selection. The Director stated that this conclusion was based upon USCIS records which show that the Petitioner and [REDACTED] both used the same IP address and same authorized signatory to submit H-1B cap registrations for the Beneficiary and that the work location on the Petitioner's petition is a satellite location for [REDACTED]. Based upon this information, the Director further advised the Petitioner that USCIS determined that the multiple cap registrations submitted by these companies for the Beneficiary contain a willful misrepresentation of a material fact made to a USCIS official with the intent to deceive for the purposes of obtaining an immigration benefit, and therefore the Director intended to revoke the petition approval with a finding of fraud.

The Petitioner responded to the NOIR, acknowledging that [REDACTED] is a related entity and that the companies use the same authorized signatory for its H-1B registrations. The Petitioner asserted, however, that the fact of a corporate affiliation between two entities that both file an H-1B registration for the same beneficiary is not sufficient to demonstrate willful misrepresentation, fraud, an intent to deceive, or collusion. The Petitioner pointed to the regulation at 8 C.F.R. § 214.2(h)(2)(i)(G) which permits the filing of multiple H-1B petitions by related entities in the same fiscal year, so long as there is a legitimate business need for the multiple filings. The Petitioner asserted that both it and [REDACTED] have legitimate business needs for the software engineer position that was offered to the Beneficiary and was the basis for the multiple H-1B registrations. The Petitioner stated that the attestation it made in submitting the H-1B registration for the Beneficiary was therefore true and correct. Accordingly, the Petitioner asserted that there is no basis in law for the revocation of the approval.

The Director concluded that the response was insufficient. In addition to the information provided in the NOIR, the Director also noted that the Petitioner and [REDACTED] had 68 overlapping registrations, that the H-1B petitions filed by the Petitioner and [REDACTED] used the same signatory, that both organizations were represented by the same counsel, and that their respective H-1B filings included nearly identical documentation. The Director further noted that, although [REDACTED] H-1B registration for the Beneficiary was also selected, [REDACTED] did not file its own H-1B petition on behalf of the Beneficiary until after the issuance of the NOIR in this matter. Additionally, the Director stated that the job description in that filing is identical to the one included in the Petitioner's H-1B filing. The Director

¹ At the time of submission, the H-1B registration form required certifying the following attestation: "I further certify that this registration (or these registrations) reflects a legitimate job offer and that I, or the organization on whose behalf this registration (or these registrations) is being submitted, have not worked with, or agreed to work with, another registrant, petitioner, agent, or other individual or entity to submit a registration to unfairly increase chances of selection for the beneficiary or beneficiaries in this submission."

therefore concluded that the Petitioner did not support its claim that both it and [] submitted their H-1B registrations based upon separate, legitimate business needs.

On appeal, the Petitioner submits a brief and additional evidence including an additional affidavit from a human resources employee. The Petitioner repeats on appeal the assertion that the regulations permit the filing of multiple H-1B registrations by related entities when there is a legitimate business need and that both it and [] had legitimate business needs for their respective H-1B registrations. Regarding the petition filed by [] after the issuance of the NOIR, the Petitioner submitted evidence that [] did not submit an H-1B cap subject petition but rather an H-1B1 petition on behalf of the Beneficiary. The Petitioner also maintains that it had no intent to deceive, that it intended to certify the attestation truthfully, and therefore did not commit fraud.

In the affidavit submitted on appeal, the human resources employee states that the Petitioner was advised by immigration counsel to file the 68 overlapping H-1B registrations for “each candidate under both [the Petitioner] and [] although initially the Petitioner had planned that only [] would submit these H-1B registrations, and not both entities. The employee states that previously, it would submit H-1B registrations “for candidates under either [] or [the Petitioner], not both.”

We are sympathetic to the Director’s concerns regarding the submission of these H-1B registrations. The Petitioner and [] submitted 68 overlapping registrations, are related entities, and have stated that they knowingly submitted the common registrations including the one in this matter. Additionally, while not part of the record considered by the Director, the affidavit submitted on appeal does not support the conclusion that the Petitioner and [] each had 68 separate, legitimate job offers, but rather that the entities had a total of 68 job opportunities between them. This, in turn, undermines the Petitioner’s claim that each of the overlapping registrations were based on legitimate job offers.

Nevertheless, we conclude that a remand is warranted in this matter because the Director did not provide sufficient notice of the basis for revocation. The revocation regulations require that the Director provide notice consisting of a detailed statement of the specific grounds for revocation and the opportunity for the petitioner to respond and submit evidence. 8 C.F.R. § 214.2(h)(11)(iii)(A) and (B). We conclude that the Director has not done so here. Although the Director advised the Petitioner in the NOIR of the intent to revoke the petition in accordance with 8 C.F.R. § 214.2(h)(11)(iii)(A)(4) because the Petitioner violated requirements of section 101(a)(15)(H) of the Act or its regulations, the Director did not include in the NOIR several of the specific factual allegations upon which the finding of revocation was eventually made. The revocation notice includes information that the Director considered derogatory but to which the Petitioner did not have the opportunity to respond. For example, the apparent similarities between the job opportunities offered to the Beneficiary by the Petitioner and [] and the fact that [] did not file an H-1B petition on behalf of the Beneficiary even though its registration was selected by USCIS. On remand, the Director also should consider the Petitioner’s contention that, contrary to statement in the revocation notice, [] filed an H-1B1 petition on behalf of the Beneficiary, rather than an H-1B petition, and whether this overcomes any of the derogatory information in the revocation notice.

Separately, we also conclude that the Director did not sufficiently articulate a basis to support the finding of fraud. As outlined by the Board of Immigration Appeals (BIA), a material

misrepresentation requires that an individual willfully make a material misstatement to a government official for the purpose of obtaining an immigration benefit to which one is not entitled. *Matter of Kai Hing Hui*, 15 I&N Dec. 288, 289-90 (BIA 1975). The term “willfully” means knowing and intentionally, as distinguished from accidentally, inadvertently, or in an honest belief that the facts are otherwise. *See Matter of Tijam*, 22 I&N Dec. 408, 425 (BIA 1998); *Matter of Healy and Goodchild*, 17 I&N Dec. 22, 28 (BIA 1979). To be considered material, the misrepresentation must be one which “tends to shut off a line of inquiry which is relevant to the foreign national’s eligibility, and which might well have resulted in a proper determination that he be excluded.” *Matter of Ng*, 17 I&N Dec. 536, 537 (BIA 1980).

Accordingly, for an immigration officer to find a willful and material misrepresentation in visa petition proceedings, he or she must determine: 1) that the petitioner or beneficiary made a false representation to an authorized official of the United States government; 2) that the misrepresentation was willfully made; and 3) that the fact misrepresented was material. *See Matter of M-*, 6 I&N Dec. 149 (BIA 1954); *Matter of L-L-*, 9 I&N Dec. 324 (BIA 1961); *Matter of Kai Hing Hui*, 15 I&N Dec. at 289-90.

Additionally, the USCIS Policy Manual provides the framework for fraud determinations including the specific elements which must be established to sustain a finding of fraud. *See generally* 8 *USCIS Policy Manual* J.2(C), <https://www.uscis.gov/policy-manual>. This includes the immigration officer making a determination that the individual or petitioner, when making the false representation, had the intent to deceive a U.S. government official authorized to act upon the request and that the U.S. government official believed and acted upon the false representation.

In the instant matter, despite the valid concerns relating to the legitimacy of the H-1B registration, the Director did not provide an adequate analysis of these factors to support the finding of fraud. The Director did not discuss the specific framework for making a fraud determination as provided by administrative case law and USCIS policy guidance and did not apply the facts of the instant matter to each of the required elements in the framework. Therefore, we will withdraw the Director’s finding of fraud.

III. CONCLUSION

The Director’s revocation of the previously approved petition based upon the finding that the Petitioner violated requirements of section 101(a)(15)(H) of the Act or paragraph (h) of the regulations is withdrawn, as is the finding of fraud based upon this ground. The Director may choose to consider our observations as they evaluate the record. And if appropriate the Director may issue a NOIR that sufficiently articulates a ground or grounds to revoke the petition. We express no opinion regarding the ultimate resolution of this case on remand.

ORDER: The Director’s decision is withdrawn. The matter is remanded for the entry of a new decision consistent with the foregoing analysis.